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AM-217-3-1

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***Notification of Overpayment
(Memo to the Employee)***

All notifications must include this information:

Employee's Name: _____ **Date:** _____

Payroll Department and Location: _____ **SSN:** _____ - _____ - _____

Following consultation with the Central Payroll Division (CPD), we have determined that you were overpaid on pay period(s) ending _____. The reason for the overpayment was _____. The total taxable amount of the overpayment is _____.

1) If the person is a non-permanent worker paid on an hourly basis:

Following City policy, AM-217-3, the overpayment will be recovered by:

- ☐ Repayment of the net amount of \$_____ by personal check payable to the Director of Finance.
- ☐ Recovery of the full amount from your next pay(s).

You have five (5) business days to notify CPD in writing if you wish to contest the validity of the overpayment calculation. You must provide an explanation and documentation to substantiate your claim.

Please check above as appropriate and sign on the next page to acknowledge this notification.

2) If the person is a permanent employee who was overpaid by 5% or less (but not more than \$100) of his/her weekly or biweekly gross salary or average regular earnings:

Since your overpayment equals five (5) % or less (but not more than \$100) of your weekly or biweekly gross salary or average regular earnings, the overpayment will be deducted from your pay for period ending _____.

You have five (5) business days to notify CPD in writing if you wish to contest the validity of the overpayment calculation. You must provide an explanation and documentation to substantiate your claim.

Please sign on the next page to acknowledge this notification.

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- 3) **If the person is a permanent employee who was overpaid by more than 5% or more than \$100 of his/her weekly or biweekly gross salary or average regular earnings:**

The following repayment options are available to you:

- ☐ You may return the erroneous check, and CPD staff will issue the appropriate replacement check (usually within one business day).
- ☐ You may reimburse the net amount (\$_____) of the overpayment by personal check made payable to the Director of Finance.
- ☐ You may agree to the recovery of the overpayment in full by payroll deduction from your next pay.
- ☐ You may request a repayment plan by payroll deduction – the **minimum** amount of the deduction is \$ _____.

Please check above as appropriate and sign below to acknowledge this notification.

You have five (5) business days to notify your agency and CPD in writing if you wish to contest the validity of the overpayment calculation. You must provide an explanation and documentation to substantiate your claim.

If, after five (5) business days, CPD has not received a notification of contest, a signed installment election form, the uncashed erroneous paycheck, or an employee's personal check for the net amount of the overpayment, CPD will proceed with recovery via payroll deduction. Recovery in this circumstance will be made from all subsequent paychecks net of mandatory deductions until the overpayment is fully satisfied.

Upon collection of overpayments, CPD staff will correct year-to-date records as necessary.

Employee's Signature: _____ **Date:** _____

Original to Employee
Employee's File
CPD Copy